

An. 1640.

' Secondly, Divers Judicatories confound one another, & in
' *peffima republica plurime leges.*

' The second Reason is, from Circumstance, or rather à *consuetu-*
' *dine*; and of this there are many examples both domestick and
' foreign: but more particularly, by the Parliaments of *France* ab-
' breviated into a standing Committee by *Philip* the King, and conti-
' nued according to his institution until *Lewis* the Eleventh came to
' the Crown, who being a Subtil Prince, buried the Volume in the
' Epitome: for to this day, when ever the three Estates are called,
' either at the death of the old King, or to Crown the new, it is a
' common Proverb, *Allons voire le van des estates.* My Lords, Arbi-
' trary Judgements destroy the Common Laws, and in them the two
' great Charters of the Kingdom; which being once lost, we have
' nothing left but the Name of Liberty.

' Then the last Reason is, (though it was the first Cause of my
' standing up) the great Eclipse it hath ever been to the whole No-
' bility; for who are so frequently vexed there, as Peers and Noble-
' men? and notwithstanding their Appeal to this Assembly is ever
' good, whilst that famous Law of the 4 *Ed. 3.* remains in force for
' the *holding of a Parliament once a year*, or more if occasion require:
' yet who durst a year ago mention such a Statute, without the in-
' curring the danger of Mr. * *Kilverts* persecution? Therefore I
' shall humbly move your Lordships, that a select Committee of a
' few may be named to consider of the Act of Parliament it self, and
' if they shall think it of as great prejudice as I do, that then the
' House of Commons in the most usual manner may be made ac-
' quainted with it either by Bill or Conference; who also happily
' think it a burthen to the Subject; and so when the whole body of
' Parliament shall joyn in one Supplication, I am confident his Ma-
' jesty will desire that nothing shall remain in force, which his peo-
' ple do not willingly obey.

* An Infor-
mer and Pro-
secutor in
that Court.

THE Barons of the Exchequer being charged for not doing
Justice to Mr. *Rolls* and other Merchants of *London*, who had
their Goods seised upon in *November 4 Car.* by the Officers of the
Custom-House, for refusing to pay the Subsidy of *Tonnage and*
Poundage. And having sued out a Writ of *Replevin* directed to the
Sheriffs of *London*, the Court awarded an Injunction, commanding
the Sheriff not to execute the same, and denyed restitution.

The Offences of these Judges therein at the Delivery of their
Impeachment to the House of Lords, were aggravated as to this case
by Mr. *Edward Hide*, who spake to this effect:

My Lords,

Mr. *Hide's*
Speech, con-
cerning the
Judges, Ton-
nage and
Poundage,
&c.

' **T**HERE cannot be a greater Instance of a Sick and Languishing
' Commonwealth, than the business of this day. Good God!
' How have the guilty these late years been punished, when the
' Judges themselves have been Delinquents. 'Tis no such marvail, that
' an Irregular, Extravagant, Arbitrary Power, like a Torrent, hath
' broke in upon us, when our Banks and our Bulwarks, the Laws,
' were